

24CHCV01112 24CHCV01112

County: los-angeles

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Case Number: 24CHCV01112 Hearing Date: July 16, 2026 Dept: F49

Dept. F49

Date: 7/16/26

Case Name: Young & Chris, Inc. dba Dragon Street
vs. Morrison Studios, Ltd., L.P.

Case No. 24CHCV01112

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 16, 2026

RENEWED MOTION TO
COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS; REQUEST FOR SANCTIONS

Los Angeles Superior
Court Case No. 24CHCV01112

Motion filed: 2/11/26

MOVING PARTY: Plaintiff Young & Chris, Inc. dba
Dragon Street

RESPONDING PARTY: Defendant Morrison Studios Ltd.,
L.P.

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling
Defendant Morrison Studios Ltd., L.P. to produce code-compliant responses to Plaintiff's
Request for Production of Documents, Set One; and awarding monetary sanctions
in the amount of \$860.00.

TENTATIVE RULING: The motion is GRANTED. The request
for sanctions is GRANTED.

BACKGROUND

This is a breach of contract action
brought by the commercial lease tenant Plaintiff against the landlord
Defendant.

On March 29, 2024, Plaintiff Young
& Chris, Inc. dba Dragon Street ("Plaintiff") initiated the action by
filing its Complaint against Defendant Morrison Studios Ltd., L.P.
("Defendant") and Does 1 through 25. On March 19, 2025, Plaintiff filed the operative
Second Amended Complaint ("SAC"), alleging the following causes of action: (1)
Breach of Contract – Failure to Maintain Required Insurance; (2) Breach of
Contract – Failure to Make Repairs; (3) Breach of Implied Covenant of Good
Faith and Fair Dealing; and (4) Breach of Quiet Enjoyment – Private Nuisance.

On June 24, 2026, Defendant
concurrently filed its Answer and a Cross-Complaint against Plaintiff and
Cross-Defendants Jung Choi ("Choi") and Roes 1 through 100. On June 26, 2026, Plaintiff
and Choi filed their joint Answer to the Cross-Complaint.

On April 17, 2025, Plaintiff filed
a motion to compel Defendant to respond to Plaintiff's Request for Production
of Documents, Set One. Hearing on the motion was vacated after Defendant
defaulted. On December 17, 2025, the Court set aside Defendant's default.
Subsequently, on February 11, 2026, Plaintiff filed the instant Renewed Motion
to Compel (the "Motion"). On July 2, 2026, Defendant filed an Opposition. On
July 9, 2026, Plaintiff filed a Reply.

ANALYSIS

A.

Renewed Motion

Plaintiff renews its April 17, 2025

motion to compel pursuant to Code of Civil Procedure section 1008, subdivision (b). Pursuant to that section, “[a] party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008, subd. (b).)

By its plain language, section 1008, subdivision (b) applies only where the original motion has been ruled upon. Here, rather than determining the original motion on its merits and either refusing or conditionally granting it, the Court, due to Defendant’s default, vacated hearing on the motion. (Minute Order, Sept. 12, 2025, at p. 1.) The Court accordingly finds that section 1008 does not apply, and Plaintiff is not required to make a showing of new or different facts, circumstances, or law.

B.

Motion to Compel Responses to Requests for Production

“A defendant may make a demand for inspection, copying, testing, or sampling without leave of court at any time.” (Code Civ. Proc. § 2031.020, subd. (a).) “Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand.” (§ 2031.260, subd. (a).) Parties may agree to extend the time for service of a response to a set of production requests. (§ 2031.270, subd. (a).)

If a party fails to serve a timely response to a demand for inspection, copying, testing or sampling, the party to whom the demand is directed waives any objection to the demand, and the

demanding party may move for an order compelling a response. (Code Civ. Proc. § 2031.300, subds. (a), (b).) A party may be relieved from waiver if it has subsequently served a substantially code-compliant response and the failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (§ 2031.300, subd. (a).)

(1)

Defendant

Failed to Timely Respond to the Requests.

Plaintiff contends that Defendant failed to serve timely responses to its Requests for Production, Set One, thereby waiving objections, and that Defendant's subsequent service of responses containing objections is accordingly improper. (Mot., at p. 3.) Plaintiff submits the declaration of its counsel, Jeffrey S. Yong ("Yong"), in support. Yong attests that his office electronically served Plaintiff's Request for Production of Documents, Set One on February 14, 2025. (Yong Decl., ¶ 4.) Initial responses were originally due on March 19, 2025. (Id., ¶ 5.) Plaintiff did not serve responses before the March 19, 2025 deadline. (Ibid.)

Defendant does not dispute that responses were not timely served, but argues that the Motion is moot because responses were subsequently served. (Opp'n, at pp. 2, 4.) Subsequent service of responses does not automatically render a motion to compel responses under Code of Civil Procedure section 2031.300, subdivision (b) moot. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408.) Because objections are waived by operation of law when timely responses are not served, a demanding party may still properly move for an order compelling responses, without objections, where the responding party's untimely responses inappropriately assert them. (Ibid.) The Court accordingly has authority under section 2031.300, subdivision (b) to determine whether Plaintiff's assertion of objections in its responses to the requests is proper.

(2)

Defendant's

Failure to Timely Respond is Inexcusable.

Defendant argues that it should be relieved from the waiver of objection because the failure to respond was due to Defendant's counsel's inadvertence, surprise, or excusable neglect. (Opp'n, at p. 3.)

Relief under Code of Civil Procedure section 2031.300, subdivision (a), is modeled on the discretionary relief provision of Code of Civil Procedure section 473, subdivision (b). The discretionary relief provision requires that a party seeking relief show both a reasonable excuse for the delay and diligence in seeking relief. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) Generally, conduct falling below the standard of care, such as failure to timely object, is not excusable. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423.) Additionally, an attorney's busy schedule, without more, does not constitute excusable neglect warranting relief. (*Id.*, at pp. 1423-1424.) Further, an unexplained delay may imply lack of diligence of the party seeking relief. (*Id.*, at pp. 1422-1423.)

Here, Defendant's counsel attests that, upon receiving the requests for production, she immediately sent them to her client. (*Mozer Decl.*, ¶ 3.) She further attests that it is difficult to obtain documents or contact the principal easily because her client is "out of the country." (*Id.*, ¶ 4.) She states that, when the responses became due and she had not received responsive documents, she did not know what requests would be objectionable, and simply waited to obtain the documents, forgetting about the responses because of "an enormous press of business." (*Id.*, ¶¶ 5-6.)

The Court finds this explanation to be insufficient to support a finding of excusable neglect. First, defense counsel's declaration contains inconsistencies that undermine its credibility, erroneously identifying counsel as attorney for "Defendant Hugo Catalan," a non-party unrelated to this action. (*Mozer Decl.*, ¶ 1.)

Second, no supporting affidavit from Defendant's principal is provided confirming unavailability to respond to discovery. As Yong attests in his Reply declaration, Defendant is an entity based in North Hollywood, California, and Yong was never apprised that Defendant was out of the country or that there were any circumstances that would result in discovery delays. (*Yong Reply Decl.*, ¶ 8.)

Third, defense counsel never requested any extensions of time to respond to the requests or explained the delay to Yong, despite Yong sending a follow-up request after initial responses were due. (*Yong Reply Decl.*, ¶ 4.) These facts all infer a lack of diligence rather than excusable neglect.

Moreover, defense counsel's justification for the failure to respond consists solely of her being busy and simply forgetting. Case law confirms that, without some extrinsic or uncontrollable factor justifying the delay, a heavy workload does not excuse the failure to properly calendar matters and respond accordingly.

Based on the foregoing, the Court DENIES Defendant's request for relief from waiver and GRANTS the Motion.

C.

Monetary Sanctions

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300(c)). Further, the Court may award sanctions "in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed[] ... or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

Plaintiff

requests monetary sanctions in the amount of \$860.00 for two hours' work expended in connection with the Motion, plus a \$60 filing fee. (Mot., at pp. 3-4; Yong Decl., ¶¶ 9-10, Exh. C.)

Given that

Defendant has not provided a satisfactory reason for the delay in providing responses and has persisted in asserting improper objections, the Court finds sanctions to be warranted to compensate Plaintiff for the time and expense of bringing the Motion. The Court finds the requested sanctions to be reasonable.

Plaintiff's

request for sanctions is accordingly GRANTED.

CONCLUSION

The Court GRANTS Plaintiff Young & Chris, Inc. dba

Dragon Street's motion to compel. Defendant Morrison Studios Ltd., L.P.
is ordered to serve verified responses, without objection, to Plaintiff's
Requests for Productions of Documents, Set One within 20 days.

The

Court GRANTS Plaintiff's request for sanctions. Defendant
Morrison Studios Ltd., L.P. is ordered to pay \$860.00 to Plaintiff within 20 days.

Moving party to give notice.